



Appointment and reappointment of a property agent, resident letting agent or property auctioneer

Property Occupations Act 2014

This form is effective from 1 July 2016

ABN: 13 846 673 994

Part 1—Client details

Client 1

Note: The client is the person or entity appointing the agent to provide the services. This may be the owner (or authorised representative of the owner) of the land, property or business that is to be sold or may be a prospective buyer seeking to purchase land or a property.

Client name

.....

ABN ACN

Are you registered for GST? ☐ Yes ☐ No

Address

.....

Suburb State Postcode

Phone..... Fax..... Mobile.....

Email address.....

Client 2

Note: Annexures detailing additional clients may be attached if required.

Client name

.....

ABN ACN

Are you registered for GST? ☐ Yes ☐ No

Address

.....

Suburb State Postcode

Phone..... Fax..... Mobile.....

Email address.....

Part 2—Licensee details

Licensee type

More than one box may be ticked if appropriate.

Note: Annexures detailing conjuncting agents may be attached if required.

Licensee name

Where a corporation licensee is to be appointed, state the corporation's name and licence number.

Where a sole trader is to be appointed, state the individual's name and licence number.

☐ Real estate agent ☐ Resident letting agent ☐ Property auctioneer

Trading name

Licensee name (corporation, if applicable).....

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ABN ACN

Licence number Expiry / /
D D / M M / Y Y Y Y

Address

Suburb State Postcode

Phone..... Fax..... Mobile.....

Email address.....

Part 3—Details of property or business that is to be sold, let, purchased, or managed

Please provide details of the property, land, or business as appropriate.

Note: Annexures detailing multiple properties may be attached if required.

Description

Address

Suburb State Postcode

Lot Plan.....

Title reference

Part 4—Appointment of property agent

Section 1

Performance of service

Annexures detailing the performance of service may be attached if required.

The client appoints the agent to perform the following service/s:

- ☐ Sale ☐ Purchase ☐ Letting / collection of rent / management
- ☐ Leasing (Commercial agents)
- ☐ Auction Auction date / / (must be completed)
- ☐ Other (please specify)

Section 2

Term of appointment

Sole and exclusive appointments: for sales of one or two residential properties, the term is negotiable and agent can be appointed or reappointed up to a maximum of 90 days per term. There are no limitations on the length of an appointment for anything other than a residential property sale.

- ☐ Single appointment for a particular service or services
- Start / / End / /
- ☐ Continuing appointment for a service or a number of services over a period
- Start / /

Section 3

Price

State the price for which the property, land or business is to be sold or let.

Note: Bait advertising is an offence under the Australian Consumer Law.

- ☐ Reserve ☐ List ☐ Letting
- \$.....
- For auctions: If a reserve price is unknown at the time of appointment, it can be advised *in writing* at a later date.
 - For residential property auctions and residential properties to be marketed without a price: If the client agrees to marketing via an *electronic listing provider*, the client agrees for the agent to disclose to the *electronic listing provider* a price or price range of
- \$..... to establish a search criteria.

Section 4

Instructions/conditions

The client may list any condition, limitation or restriction on the performance of the service.

Note: Annexures detailing instructions/conditions may be attached if required.

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Part 5—Termination of appointment

Residential sales of 1 or 2 properties only	Open listing: You may terminate in writing at any time. Sole or exclusive: The client and agent can agree in writing to end the appointment early. For appointments of 60 days or more, either party can end the appointment by giving 30 days written notice, but the appointment must run for at least 60 days unless both parties agree to an earlier end date.
Open listing	You may terminate an open listing for either commercial or residential property sales at any time.
Other fixed term appointments (excluding residential property sales)	The parties may agree to a fixed term appointment of their choice. This term may be ended earlier by mutual agreement.
Continuing appointments (for example: letting, collection of rents etc)	You may terminate in writing with 30 days notice, or less if both parties agree.

Part 6—PROPERTY SALES: open listing, sole agency or exclusive agency

To the client

You may appoint an agent to sell a property or land on the basis of an open listing, or a sole agency, or exclusive agency.

The following information explains the circumstances under which you will, and won't, have to pay a commission to the agent if the property is sold during their term of appointment.

☐ OPEN LISTING

- You appoint the agent to sell the property but you retain a right to appoint other agents on similar terms, without penalty or extra commission.
- No end date required.
- Appointment can be ended by either you or the agent at any time by giving written notice.

When you must pay the agent

- The agent is entitled to the agreed commission if the agent is the effective cause of sale.

When you don't have to pay the agent

- If the client sells the property privately and the agent is not the effective cause of sale i.e.: purchaser did not contact the agent, did not attend open house inspections etc.

☐ SOLE AGENCY

When you must pay the agent

- If you appoint a new agent during an existing agent's sole agreement term and the property is sold during that term, you may have to pay:
 - A commission to each agent (two commissions)
 - Damages for breach of contract arising under the existing agent's appointment

When you don't have to pay the agent

- If the client sells the property privately and the agent is not the effective cause of sale i.e.: purchaser did not contact the agent, did not attend open house inspections etc.

☐ EXCLUSIVE AGENCY

When you must pay the agent

- The client will pay the appointed agent whether this agent, any other agent, or person (including the client themselves) sells the property during the term of the appointment.
- If the client sells the property, the exclusive appointment expires and if the agent was the effective cause of sale (introduced the buyer to the property) the agent may be entitled to commission.

At the end of the sole or exclusive agency, the parties ☐ Agree ☐ Do not agree
that the appointment will continue as an open listing. (Please tick whichever is relevant)

Part 6—PROPERTY SALES: open listing, sole agency or exclusive agency continued

Acknowledgement for sole and exclusive agency

I/we acknowledge the appointed agent has provided me/us with information about sole and exclusive agency appointments.

Client

Date / /
D D M M Y Y Y Y

Agent

Date / /
D D M M Y Y Y Y

Part 7—Commission

To the client

The commission is negotiable. It must be written as a percentage or dollar amount.

Make sure you understand when commission is payable. If you choose 'Other' and the contract does not settle, the agent may still seek commission.

To the agent

You should ensure that commission is clearly expressed and the client fully understands the likely amount and when it is payable. Refer to section 104 and 105 of the *Property Occupations Act 2014*.

The client and the agent agree that the commission including GST payable for the service to be performed by the agent is:

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.....

When commission is payable

☐ For sales, including auctions, commission is payable if a contract is entered into and settlement of the contract occurs.

☐ Other
(for specific other circumstances in which commission is payable see annexure).

For all other types of appointments:

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Part 8—Authorisation to incur fees, charges and expenses

The client authorises the agent to incur the following expenses in relation to the performance of the service/s. Annexures may be attached if required.

Section 1 Advertising/marketing

To the client

Your agent may either complete this section or attach annexures of marketing/advertising activities. In either case, the *authorised amount* must be written here.

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Authorised amount \$

When payable / /
D D M M Y Y Y Y

Section 2 Repairs and maintenance (if applicable) Property management

The maximum value of repairs and maintenance to be paid by the agent without prior approval by the client is \$

Section 3 Other

Description of fees and charges.

The agent may either complete this section or attach annexures.

Description	Amount	When payable
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.....		
.....		
.....		

Section 4 Agent's rebate, discount, commission or benefit incurred in the provision of or performance of the service

Service	Source	Estimated amount
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.....		
.....		
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Part 9—Signatures

WARNING: THE CLIENT IS ADVISED TO SEEK INDEPENDENT LEGAL ADVICE BEFORE SIGNING THIS FORM.

This form enables the client to appoint, or reappoint, a property agent, resident letting agent or property auctioneer (the ‘agent’) for the sale, letting/management, collection of rent, auction or purchase of real property, land or businesses. This form must be completed and given to the client before the agent performs any service for the client. Failure to do so may result in a penalty and loss of commission for the agent. If you are unclear about any aspect of this form, or the fees you will be charged, do not sign it. Seek legal advice. If you need more information about this form including what an agent needs to disclose, you can visit the Office of Fair Trading website at www.qld.gov.au/fairtrading or phone on **13 QGOV** (13 74 68).

Client 1	Full name..... Signature ☐ ☐ / ☐ ☐ / ☐ ☐ ☐ ☐ D D M M Y Y Y Y
Client 2	Full name..... Signature ☐ ☐ / ☐ ☐ / ☐ ☐ ☐ ☐ D D M M Y Y Y Y
Agent A registered real estate salesperson working for an agency can sign this form on behalf of the licensed agent.	Full name..... Signature ☐ ☐ / ☐ ☐ / ☐ ☐ ☐ ☐ D D M M Y Y Y Y
Schedules and attachments List any attachments.	

Part 10—Reappointment

Use this section to reappoint your agent. A new appointment form is required if any of the terms or conditions are to change. Your agent can only be reappointed within 14 days before the contract ends—not before. Limitations apply on reappointments for sole or exclusive agency appointments for residential property sales.	I/we (the client) reappoint
	 (the agent) to ☐ ☐ / ☐ ☐ / ☐ ☐ ☐ ☐ D D M M Y Y Y Y
	Client's name.....
	Signature ☐ ☐ / ☐ ☐ / ☐ ☐ ☐ ☐ D D M M Y Y Y Y
	Client's name.....
	Signature ☐ ☐ / ☐ ☐ / ☐ ☐ ☐ ☐ D D M M Y Y Y Y

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This is the end of the approved form. Please note, any annexures/schedules form part of the appointment contract.

SCHEDULE "A" TO PROPERTY OCCUPATIONS FORM 6

Seller's Name : _____

Seller's ACN : _____

Property Name : _____

Property Address : _____

Item 4 PERFORMANCE OF SERVICES**Conditions, Limitations and Restrictions on the Performance of Service**

It is agreed that the "Investir en Australie" (IEA) system internal agency

will not operate itself the sales regarding the above program/product/property, but will :

- activate its "*Agences Partenaires Locales*" - APL (Local Partner Agencies) international francophone network for presenting the program/product/property to foreign investor markets;
- entrust the sales operations to its associated "*Agences Francophones Australiennes*" - AFA (Australian Francophone Agencies).

Therefore :

- 1 No payment of sales commissions or bonuses will be made by the Client to IEA system internal agency _____
- 2 The IEA system AFA nominated by a buyer for conducting the sale will have to request from the Client their own sales mandate (Form 6).
- 3 The present sales mandate (Form 6) and Schedules A and B are only issued to IEA system internal agency to provide proof to the international Francophone network and to the Authorities of foreign Francophone countries and territories that the Client has granted IEA system internal agency the right to market the program/product/property and the authorization to subdelegate to foreign agencies the right to present the program/product/property to their local clientele. Consequently, IEA system internal agency is authorized to sub-delegate to foreign agencies the right to present the program/product/property to international investors.
- 4 (a) A buyer registration will only be valid if the AFA accompanies the IEA portal buyer to the program/product/property Sales Office and registers the buyer's name with an onsite Sales Consultant.

(b) When a buyer from IEA system purchases a property through IEA portal from abroad, without travelling to Australia, and nominates their Australian Francophone Agency, in particular in their "*Expression Of Interest*", that agency nomination will be considered by the Client as a regular, in order buyer registration to the nominated AFA, and subsequently the Client will deliver the proper sales mandate (Form 6) to the nominated AFA and, in case of an effective purchase by the buyer, pay the sales commission to that AFA.
- 5 (c) As IEA system buyers sign an exclusive purchase mandate in favor of their nominated AFA, the registration of an IEA system buyer remains valid to their AFA for a maximum period of 90 days in which to effect a property sale under currency of that registration, within terms of this agreement.

Real Estate Agent's Name: _____ Signature: _____ DATE: _____	Client's Name: _____ Signature: _____ DATE: _____
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SCHEDULE "B" TO PROPERTY OCCUPATIONS FORM 6**Seller's Name :** _____**Seller's ACN :** _____**Property Name :** _____**Property Address :** _____
_____**Item 7 Commission****7.1 Agreed commission**

Payment of sales commissions and possible bonuses will only be made by the Client to IEA system specifically nominated AFAs, and not to IEA system internal agency

Pursuant to the property registration on the IEA portal, the commission amount payable by the Client to the AFA shall be an amount of _____ of the sales price (plus GST).

Item 8 Fees, Charges and Expenses**8.1 Amounts payable**

There are no fees, charges and expenses to be paid either to the AFAs or IEA system internal agency _____.

8.2 When sales commission and bonuses are payable

➤ 50% of sales commission due (as set out in 7.1 above) will be payable to the AFA upon the property becoming unconditional (as set out in 8.3 below), i.e., upon:

- a binding contract being entered into at a price and upon terms and conditions to the satisfaction of the seller;
- receipt of a 10% deposit; and receipt of a 20% deposit for FIRB;
- unconditional satisfaction of any finance clause, any required cooling off period and any other special conditions contained in the contract.

If a bonus has been granted by the Client, its full amount will be payable to the AFA at the same time and to the same conditions as the above first payment of the sales commission.

➤ 50% of commission due (as set out in 7.1 above) will be payable to the AFA upon the settlement of the unconditional contract, within the time frames set out in 8.3 below.

8.3 The AFA will have to provide a properly completed Tax Invoice made out to the Seller in exchange for payment made by the Client to the AFA. If a Tax Invoice is not provided the Client may withhold payment. The AFA must provide its ABN to the Client prior to any payment being made by the Client to the AFA. If the AFA fails to do so it is acknowledged that the Client may withhold the amount required by law. Payment of initial 50% commission, and possibly total bonus, will be made within 30 days of the contract becoming unconditional or 30 days of receiving the tax invoice (whichever is the later), including receipt of full 10% deposit. Payment of remaining 50% commission will be made within 7 days of settlement or 7 days of receiving the Tax Invoice, whichever is the later.

By signing below the Agent (IEA system internal agency) and the Client consent to the above:

Agent : _____

Date : _____

Client : _____

Date : _____